

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MAGDA RODRIGUES,

Petitioner

VS.

ROBERT MONTERO DEOLIVEIRA,

Respondent

) Case Number: FDI-20-793903

) Hearing Date: July 16, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

The parties are ordered to appear in-person or by Zoom. Both parties shall bring to the hearing fully completed Income and Expense Declarations.

If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

1) Petitioner Magda Rodrigues (Wife) and Respondent Robert Deoliveiro (Husband) married on 8/29/1998 and separated in February 2019, for a marriage of 20 years and 5 months. The parties have no minor children. Wife is represented by attorney Michelle Harris. Husband is self-represented.

2) On 10/31/2022, a Stipulated Judgment was entered which provides in relevant part:

- a. "The current spousal support order filed April 12th, 2021 shall remain in full force and effect until June 1st, 2027, meaning five years from June 1st, 2022 to capture Robert's wages and salary \$4,720 per month, i.e. the Dissomaster listed as Exhibit B to said FOAH. To capture the bonus support from the period of separation through June 1st, 2027, commissions and RSUs, or any other outside consulting work, the parties agree to a

1 lump sum buy-out proposal of \$126,297.27 for that amount. On June 1st, 2027, spousal
2 support shall then drop to zero but the court retains jurisdiction with Magda having the
3 burden to show need and the ability to pay... Spousal support is modifiable upon a
4 showing that his income from all sources has decreased involuntarily and has decreased
5 to \$160,000 or below. Spousal support shall terminate on the death of either party or
6 MAGDA's remarriage."

7 3) The support order filed 4/12/2021 is based on Husband's earning \$14,560 per month in wages
8 and salary and \$4,166 per month in other taxable income, and Wife's earning \$2,665 in other
9 taxable income.

10 4) On 11/14/2025, Husband filed a Request for Order seeking to modify spousal support to \$0
11 effective 11/24/2025 due to involuntary termination from employment effective 11/24/2025.

12 5) At the prior 1/29/2026 hearing, pursuant to an agreement of the parties, the Court ordered the
13 following:

- 14 a. Spousal support was set to \$0 effective 12/1/2025.
- 15 b. The Court's jurisdiction was reserved to modify spousal support retroactive to the date
16 Husband obtains employment.
- 17 c. Husband was ordered to keep Wife's counsel informed of any new employment.
- 18 d. A review hearing was set for 4/23/2026 (which was later continued by agreement of the
19 parties to 7/14/2026).
- 20 e. Wife's attorney was ordered to prepare the Findings and Order After Hearing.

21 6) On 7/14/2026, Wife's attorney filed a declaration stating: "Respondent recently obtained work.
22 Unfortunately, we have not had time to meet and confer to discuss the new support amount.
23 Accordingly, the undersigned requests that the Court order appearances, pass the matter, and
24 Petitioner's counsel will 'meet and confer' with Respondent, in pro per, during the morning."

25 7) Other than the 7/14/2026 pleadings mentioned above, there have been no pleadings filed in this
26 case since the prior 1/29/2026 hearing date.

27 **B. Findings and Order**

28 1) **The parties are ordered to appear. Both parties shall bring to the hearing fully completed**
29 **Income and Expense Declarations.**

2) Petitioner's attorney is admonished to prepare and submit the Findings and Order After Hearing for the 1/29/2026 hearing date, as she was previously ordered to prepare.